

CONTRACT
public offer for the provision of services for
using the Internet.

Limited Liability Company "TRIADA TRADE PARTNERS", hereinafter referred to as the "Contractor", represented by Director Yaroslav S. Yakimov, acting on the basis of the Company's Charter, on the one hand, hereby offers an unlimited number of individuals and legal entities, hereinafter referred to as the Client or the Customer, on the other hand (hereinafter referred to as the Parties), to accept this Public Offer (*to conclude an agreement on the use of the website <https://www.triada-trade.com/>*)

The Offer is public and, in accordance with Articles 633, 641 of the Civil Code of Ukraine, its terms are the same for all Clients or Customers. Unconditional acceptance of all the terms of this Public Offer without any exceptions and/or restrictions shall be deemed acceptance of this Public Offer (hereinafter referred to as the Agreement) by the Contractor and the Customer, and the Agreement itself shall be automatically deemed concluded.

Section 1. Terms

- 1.1. Public Offer means an offer of the Contractor (posted on the Contractor's website <https://www.triada-trade.com/>) addressed to an unlimited number of individuals and legal entities in accordance with Article 641 of the Civil Code of Ukraine to conclude a Service Agreement on the terms and conditions of the Agreement.
- 1.2. Agreement means a transaction made in the form of an adhesion agreement in accordance with Art. 634 of the Civil Code of Ukraine on the provision of services, the terms of which are established by the Contractor, and which may be concluded only by the Customer's adhesion to the proposed Agreement as a whole.
- 1.3. The Contractor's website is a web page on the Internet at <https://www.triada-trade.com/> which is the main source of information for the Customer and/or can be used by the Customer to order the Contractor's services.
- 1.4. The Customer is a legally capable individual or a representative of a legal entity that has accepted the Contractor's Public Offer set forth in this Agreement.
- 1.5. User - a person who is registered on the Contractor's server using a confirmation code, which is automatically sent as an SMS message to the phone number specified by the Customer.
- 1.6. Acceptance means full, unconditional and unreserved acceptance by the Customer of the terms and conditions set forth in the Offer without any exceptions, limitations and reservations in accordance with Part 2 of Article 642 of the Civil Code of Ukraine.

Acceptance may be made in one of the following ways:

- by filling out, signing and submitting a written Acceptance by the Customer to the Contractor, a sample of which is available on the Contractor's website (initial registration on the website);
 - transferring funds to the Contractor's bank account as payment or partial payment for the relevant services of the Contractor;
 - placing an Order for the Contractor's services by the Customer using the Contractor's website.
- 1.7. The Customer must read the terms of the Public Offer and confirm their agreement with its terms when receiving any services of the Contractor, as well as when ordering any services through the Contractor's Website.
 - 1.8. Authorized access means access to the Contractor's services subject to successful certification of the legitimacy of the user's remote access to the Contractor's server, which is carried out using a confirmation code automatically generated by the Contractor's server.
 - 1.10 Invitation code - an individual set of characters that is automatically generated by the Contractor's Server, sent by SMS to the phone number specified by the Customer and allows registration on the Contractor's server.
 - 1.11. Credentials - the User's (Customer's) data used to identify him/her and provide authorized access to the mobile application.
 - 1.12. Personal data means information or a set of information about an individual or legal entity that is identified or can be specifically identified.
 - 1.13. Consent of the personal data subject is a voluntary expression of will of an individual who gives permission to process his or her personal data in accordance with the purpose of processing.

- 1.14. Processing of personal data means any action or set of actions, such as collection, registration, accumulation, storage, adaptation, modification, updating, use and dissemination (distribution, sale, transfer), depersonalization, destruction of personal data, including with the use of information (automated) systems.
- 1.15. Terms and Conditions of the respective Services - *the* terms and conditions of the Services selected by the Customer under this Agreement shall be its integral part and shall be the sole source of settlement of all relations between the Customer and the Contractor arising in the course of the Services provision. All advertising, presentation and other materials created and existing for the purpose of informing about the Contractor's services shall be for informational and reference purposes only and shall not be a source of regulation of all terms and conditions of the Services.

Section 2. General terms and conditions

- 2.1. This Agreement shall be concluded between the Customer and the Contractor in the form of a contract of adhesion in accordance with Article 634 of the Civil Code of Ukraine and shall be valid until the Parties fulfill their obligations.
- 2.2. The publication (posting) of the Agreement on the Contractor's website is an official offer (Public Offer) of the Contractor addressed to an indefinite number of persons in accordance with Article 641 of the Civil Code of Ukraine to enter into a service agreement with the Contractor on the terms of the adhesion agreement.
- 2.3. In case of acceptance of the terms of this Offer, the Customer agrees to all the terms of this Agreement and confirms that he understands all its provisions.
- 2.4. This Offer is an open and publicly available document. The current version of the Agreement is available at: <https://www.triada-trade.com/> and is available for review until the Customer accepts the terms of the Agreement.
- 2.5. The Contractor shall have the right to amend or supplement the Agreement at any time without prior or subsequent notice, which shall be made public 10 days prior to their entry into force and shall be made publicly available by means of publication on the Website. The obligation to familiarize themselves with the current version of the Agreement shall be imposed on the Customer. Continued use of the Website by the Customer after making changes and/or additions to the Agreement means acceptance and consent of the User to such changes and/or additions.
- 2.6. Continued use of the Website by the Customer after the entry into force of amendments and/or additions to the text of the Offer means acceptance by the Customer of the updated Agreement. In case the Customer disagrees with the changes and/or additions made by the Contractor to the text of the Offer, or disagrees with the new tariffs for the service, the Customer must stop using the Website <https://www.triada-trade.com/>.
- 2.7. Each Party warrants to the other Party that it has the necessary legal capacity, as well as all rights and powers necessary and sufficient to enter into and perform the Agreement in accordance with its terms. The Customer also confirms that there are no circumstances that could lead to the recognition of such agreement as void.
- 2.8. This Agreement is public within the meaning of Article 633 of the Civil Code of Ukraine.
- 2.9. The place of conclusion of the Agreement is Kyiv, Ukraine.
- 2.10. By joining this Public Offer, the Customer agrees to the Contractor's use and processing of his personal data in accordance with the Law of Ukraine "On Personal Data Protection".

Section 3. Procedure for concluding the Agreement

- 3.1. The Agreement shall be concluded by the Customer's accession to the Public Offer by full and unconditional acceptance of the terms of this Agreement as a whole, without any conditions, exceptions or comments.
- 3.2. The Customer confirms that before entering into this Agreement, he/she has been fully and properly familiarized with all its provisions and has accepted them of his/her own free will without any coercion. Confirmation of familiarization with the terms of the Agreement and their

acceptance is also the installation of a symbol in a special field under the words "*I have read and agree to the terms of the Privacy Policy and the Offer Agreement*", which appears during the first registration on the Contractor's Website.

- 3.3. The Customer accepts the Agreement (i.e., gives its direct and irrevocable consent to comply with all its terms and conditions) by performing at least one of the following actions in combination or separately:
 - by filling in, signing and delivery by the Customer to the Contractor a written Acceptance, a sample of which is available on the Contractor's website;
 - transferring funds to the Contractor's bank account as payment or partial payment for the relevant services of the Contractor;
 - placing an Order for the Contractor's services by the Customer using the Contractor's website.
- 3.4. The fact of conclusion (acceptance) of the Agreement shall be the implementation by the Customer of the actions specified in clause 3.3. Section 3 of this Agreement. The Customer's registration on the website <https://www.triada-trade.com/> is sufficient to receive services and pay for them.
- 3.5. The Agreement, subject to compliance with the procedure for its acceptance, shall be deemed to be concluded in a simple written form, shall enter into force upon acceptance and shall be valid for the entire period of receipt of services, or until terminated on the grounds specified in the terms of the Agreement and/or the provisions of the current legislation of Ukraine. Termination of the Agreement shall not release the parties from fulfillment of their obligations.
- 3.6. Conclusion of the Agreement means that the Customer:
 - has familiarized himself with the rules of service provision to the extent necessary for him;
 - recognizes the professional suitability of the Contractor and the rules for performing all actions described in this Agreement and accepts all the terms and conditions of this Agreement without comment.
- 3.7. The website <https://www.triada-trade.com/> operates on the principle of "as is", i.e. as the Customer sees it now and as it is available to the Customer.
- 3.8. The Contractor shall not be liable for any unauthorized access or use of the Contractor's Website and/or any information about users stored on the Server, as well as for any errors, failures, viruses and other defects and violations that may be transmitted to the Website by third parties and their consequences for the User, including but not limited to: losses, lost profits, moral damage, damage to honor, dignity and business reputation.

Section 4. Subject matter of the Agreement, procedure for performance and payment for services

- 4.1. This Public Offer (Agreement) defines the specifics of the provision of consulting services and other services presented on the Contractor's Website.
- 4.2. The Customer shall timely and fully pay the cost of the services rendered to him/her, according to the tariffs set by the Contractor. The cost of services is determined in the invoice issued by the Contractor or the Act of services rendered.
- 4.3. General use of the site is free of charge.
- 4.4. The contract amount consists of the sum of the services ordered and rendered in accordance with the act of work performed (*Annex No. 1 to the Public Offer Agreement*).
- 4.5. The Customer shall not be obliged to make an advance payment for the Contractor's services, unless otherwise specified in the invoice issued by the Contractor.
- 4.6. The Services shall be provided from the moment the Customer accepts the terms and conditions of this Agreement and its annexes.
- 4.7. The place of service provision shall be the place identified and specified by the Customer.
- 4.8. The Contractor shall provide the services without any boundaries within the territory of use.
- 4.9. The Customer pays for the services by transferring funds for the services to the current account of the Contractor.
- 4.10. The Contractor shall have the right to unilaterally change the tariffs for services. The Contractor shall publish information about such changes on its official website.
- 4.11. The provision of services is carried out in the following order: The Customer accepts this Agreement in any way specified in clause 1.7. Section 1. of this Agreement.

Section 5. Rights and obligations of the parties

5.1. The customer has the right to:

- 5.1.1. Receive necessary and reliable information about the Contractor, the Website, the scope of services provided by the Contractor, as well as other information related to the provision of services.
- 5.1.2. Control the provision of services by the Contractor.
- 5.1.3. To refuse to provide services if the services provided do not comply with the terms of the Agreement and to demand compensation from the Contractor for losses if they have arisen as a result of the Contractor's failure to perform or improper performance of its obligations under this Agreement.

5.2. The Customer undertakes:

- 5.2.1. Provide complete and accurate information necessary to identify the Customer.
- 5.2.2. Provide the surname, name and patronymic, means of communication, address of the place of service provision, the essence of the service, as well as other additional information if requested by the Contractor.
- 5.2.3. When applying to the Contractor for the provision of services, do not violate the requirements of applicable law and the norms of morality and ethics accepted by society, do not use the results of the Contractor's services for illegal purposes, as a result of which the rights and legitimate interests of the Contractor and/or third parties may be violated.
- 5.2.4. Accept the services rendered by the Contractor if they comply with the terms of the Agreement.
- 5.2.5. When using the services, please refer to the reference information posted in the relevant section on the website <https://www.triada-trade.com/>
- 5.2.6. In case of any claims regarding the services provided by the Contractor, notify the Contractor in writing in a free form within 3 (three) calendar days from the moment when the Customer became aware of the non-fulfillment or improper fulfillment of the Contractor's obligations under this Agreement.
- 5.2.7. Prevent access to the Contractor's Website by third parties, do not transfer user credentials to third parties.
- 5.2.8. To comply with the legislation of Ukraine concerning the protection of the Contractor's copyrights.

5.3. The Contractor has the right to:

- 5.3.1. Engage third parties who are qualified to provide a particular type of service to perform their duties.
- 5.3.2. Verify the information provided by the Customer and the Customer's compliance with the terms of the Agreement.
- 5.3.3. Refuse to provide services to the Customer in cases where:
 - a) the customer has breached its obligations in relation to the services;
 - b) the Customer uses the results of the services provided for illegal purposes, which harms or may harm the rights and legitimate interests of the Contractor and/or third parties;
 - e) the customer provided inaccurate or incomplete information, or did not provide it at all;
 - f) the Customer does not agree with the terms of this Agreement;
- 5.3.4. Amend or supplement the Agreement at any time without prior or subsequent notice, which shall be made public 10 days prior to their entry into force and shall be made publicly available by publication on the Website <https://www.triada-trade.com>. The obligation to familiarize themselves with the current version of the Agreement shall be borne by the Customer. Continued use of the Website by the Customer after making changes and/or additions to the Agreement means acceptance and consent of the User to such changes and/or additions.

5.4. The Contractor undertakes to:

- 5.4.1. Provide the Customer with the opportunity to receive services of proper quality.
- 5.4.2. Provide the Customer with the opportunity to receive information on the provision of services.
- 5.4.3. Provide the Customer with the opportunity to receive services.
- 5.4.4. In case of impossibility to provide the service due to the fault of the Contractor, immediately notify the Customer of the impossibility and agree on the date and time of the service.
- 5.4.5. Ensure, in accordance with the established procedure, the confidentiality of information relating to the subject matter of the Agreement, the progress of its implementation and the results

obtained.

- 5.4.6. Comply with the requirements of the Law of Ukraine "On Personal Data Protection" when processing personal data of the System Users.

Section 6. Other terms and conditions

- 6.1. Dispute resolution procedure and applicable law.
- 6.1.1. All disputes and controversies that may arise in the course of the Contractor's services, in connection with the acceptance, fulfillment and/or violation of the provisions of this Agreement and all its annexes shall be settled by negotiation between the Parties.
- 6.1.2. In case of failure to reach an agreement through negotiations, the Customer reserves the right to file claims, which must be considered by the Contractor within a reasonable time, in order to resolve disputes and disputes in a pre-trial procedure.
- 6.1.3. In case of failure to reach an agreement between the Parties through negotiations and the impossibility of settlement in the pre-trial procedure, all disputes and disputes shall be resolved in court at the location of the Contractor.
- 6.1.4. The relations of the parties arising from the acceptance and execution of this Agreement and all Annexes hereto shall be governed by the applicable rules and provisions of the laws of Ukraine to the extent that they do not contradict the mandatory rules of law of Ukraine.
- 6.2. Limitation of the Contractor's liability.
- 6.2.1. The Parties understand and acknowledge that the discrepancy between the result of the provision of a particular service and the result expected and desired by the Customer when applying for the provision of the relevant service does not in itself constitute the fact of the provision of such service of inadequate quality.
- 6.3. Final provisions.
- 6.3.1. The performer leaves for itself right B any time unilaterally amend this Agreement.
- 6.3.2. All amendments to this Agreement shall be published on the Contractor's Website.
- 6.3.3. All amendments to this Agreement shall enter into force upon their publication on the Contractor's Website.
- 6.3.4. The amendments, which have come into force, apply to all Customers.
- 6.3.5. The Customers shall be deemed to have been notified of the amendments to the Agreement from the moment such amendments are published on the Contractor's Website.
- 6.3.6. All Appendices to the Agreement shall be integral parts of this Agreement and shall be binding upon the parties hereto.

Section 7. Responsibility of the parties

- 7.1. The Parties shall be liable for non-fulfillment or improper fulfillment of obligations under this Agreement in accordance with the current legislation of Ukraine, taking into account the specifics established by the Agreement.
- 7.2. A Party shall not be liable for breach of the Agreement if it occurred through no fault of its own (intent or negligence). A Party shall be deemed innocent and shall not be liable for breach of the Agreement if it proves that it has taken all measures in its power to properly perform this Agreement.
- 7.3. The Parties shall be released from liability for non-performance or improper performance of obligations under this Agreement in the event of force majeure circumstances that did not exist at the time of the Agreement and arose beyond the will of the Parties. Such circumstances shall include: natural disasters, extreme weather conditions, fires, epidemics, any military actions, catastrophes, accidents, strikes, prohibitive acts of public authorities (including local ones) and other force majeure circumstances of this kind.
- 7.4. The Contractor shall not be liable:
- for the content of user data, as well as for the content of any information entered by other users.
 - in case of temporary inoperability of the Website due to the following reasons: planned or unscheduled technical or preventive maintenance, technical failures of Internet providers, computer networks, servers and facilities, as well as illegal actions of third parties or force

majeure. At the same time, the Contractor undertakes to make every effort to restore the performance as soon as possible.

- for the loss of information regarding access to the Website caused by the user's fault, as well as for any consequences that may arise as a result of this for any consequences of a security breach, including data breach or data corruption, which occurred as a result of third parties' access to the Contractor's Website.
- 7.5. The Contractor shall under no circumstances be liable for the violation of intellectual property rights of third parties by Users. Users are prohibited from creating, uploading, posting, copying information, materials or images in violation of the intellectual property rights of third parties.
- 7.6. The Contractor shall have exclusive rights to the intellectual property rights related to the Contractor's Website, including trademarks (marks for goods and services), copyrighted works, etc., including, but not limited to, the programs and services through which the System is implemented. Any use of the Contractor's programs and services does not result in the transfer of any intellectual property rights to the Customer.

Section 8. Term of the Agreement

- 8.1. A valid Public Offer Agreement is valid from the moment the Customer joins it.
- 8.2. The term of the agreement is unlimited.
- 8.3. The Client shall have the right to terminate this Agreement in case of failure to fulfill its terms by the Contractor or in case of no need for services. The Client is not obliged to notify the Contractor in writing of the termination of the Agreement.
- 8.4. After posting a valid Public Offer Agreement on the Contractor's website, all previous agreements that conflict with it shall become null and void.
- 8.5. If necessary, at the Client's request, this Agreement may be executed in writing. Addendums executed in writing and signed by the parties for the purpose of performing this Agreement shall be its integral part.

Section 9. Routine maintenance work

- 9.1. The Contractor's Website shall provide twenty-four (24) hour (24/7) access to the services via the Internet with the required level of access security and maintenance breaks. Technical support is provided daily from 9:00 to 18:00, except for weekends and scheduled maintenance.
- 9.2. In cases of technical and preventive maintenance, the uninterrupted operation of the services is not guaranteed and the Contractor shall be released from liability under the Agreement and the current legislation of Ukraine.
- 9.3. For issues related to the operation of the Website, users can contact the Support Service by: sending an e-mail to natali.b@triada-trade.com or by calling the Support Service at +38067 366 77 66

Section 10. Final provisions.

- 10.1. This agreement is governed by the current legislation of Ukraine.
- 10.2. The Contractor shall keep confidential the data and information received from the Customer upon conclusion of the Agreement or during its performance and may disclose them only in the manner and cases expressly provided for by the current legislation of Ukraine.
- 10.3. The Customer unconditionally consents to the storage and processing, including automated processing, of any information related to the Customer's personal data for the purpose of performing this Agreement and the consequences of its performance or non-performance. The Customer gives the Contractor his/her consent to the processing of all his/her personal data without limitation of the storage period and the period of processing of personal data.
- 10.4. The invalidation of any provision or clause of this Agreement or its annexes shall not affect the validity of the remaining terms and conditions of the Agreement.

Client:

Contractor:

**TRIADA TRADE PARTNERS LIMITED LIABILITY
COMPANY**

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